ORDER BY FRANK L. POLK

UNDER AUTHORITY OF EXECUTIVE ORDER OF

DECEMBER 3, 1918.

BUREAU OF ROLLS & LIBRARY
MAR 18 1919
DEPARTMENT OF STATE

AN ORDER REJECTING THE BID OF MONSANTO CHEMICAL WORKS OF $605,000 for 747 SHARES, OF THE PAR VALUE OF $200 EACH, of THE HEYDEN CHEMICAL WORKS, A CORPORATION OF THE STATE OF NEW JERSEY, CONSTITUTING ALL OF THE OUTSTANDING CAPITAL STOCK OF SAID CORPORATION (THREE REMAINING SHARES BEING TREASURY STOCK); and ALL THE RIGHTS, INTERESTS AND BENEFITS CREATED IN FAVOR OF CHEMISCHE FABRIK VON HEYDEN A.G. OF RADEBEUL, GERMANY BY A CERTAIN AGREEMENT DATED JUNE 7, 1906, BETWEEN SAID CHEMISCHE FABRIK von HEYDEN A.G. and THE HEYDEN CHEMICAL WORKS; and CERTAIN PATENTS AND TRADEMARKS HERETOFORE HELD BY THE SAID CHEMISCHE FABRIK VON HEYDEN A.G. andER. VON HEYDEN NACHFOLGER, OF RADEBEUL, GERMANY, offered FOR SALE AT PUBLIC AUCTION ON FEBRUARY 14, 1919, PURSUANT TO THE "TRADING WITH THE ENEMY ACT AND AMENDMENTS THEREOF.

By virtue of the authority vested in the President by "AN Act to define, regulate and punish trading with the enemy, and for other purposes," approved October 6, 1917, known as the"Trading with the Enemy Act", and the amendment to such Act embodied in "an Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ended June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ended June 30, 1919, and prior fiscal years on account of war expenses and for other purposes," approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 and signed by the President under the third day of December, 1918, I hereby, in the public interest, make the following determination and order:

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The Alien Property Custodian having offered at public sale at the office of the company at Garfield, in the State of New Jersey, at three o'clock P.M. on the 14th day of February, 1919, the following property to-wit:

(a) Seven hundred and forty seven (747) shares of the par value of Two Hundred ($200) Dollars each, of the capital stock of The Heyden Chemical Works, a corporation organized and existing under the laws of the State of New Jersey, aggregating in par value One Hundred Forty Nine Thousand and Four Hundred ($149,400) Dollars, and constituting all of the outstanding capital stock of said corporation, and, with three (3) shares of said stock held in the treasury of said corporation, all of the authorized capital stock thereof.

(b) All of the rights, interests and benefits created in favor of said Chemische Fabrik von Heyden A.G., of Radebeul, Germany by a certain agreement in theGerman language, dated June 7, 1906, between said Chemische Fabrik von Heyden, A.G. and The Heyden Chemical Works, a corporation of the State of New Jersey, and also all rights and interest to any sum or sums of money hereafter accruing in favor of or becoming due or payable to said Chemische Fabrik von Heyden A.G. under the terms of said agreement, and also all claims and demands whatsoever created or existing in favor of, or conferred upon said Chemische Fabrik von Heyden A.G. against the said The Heyden Chemical Works, all of which rights, interest, benefits, claims and demands have been heretofore required by the Alien Property Custodian to be transferred, assigned, delivered and paid over to him.

(c) All those certain letters patent of the United States, specified in Schedule "A" hereto annexed, and every right, title and interest with respect thereto, heretofore held by said Chemische Fabrik von Heyden A.G., of Radebeul, Germany, all of which patents have been heretofore required by the Alien Property Custodian to be conveyed, transferred, assigned and delivered to him.

(d) All those certain registered trademarks specified in Schedule "B" hereto annexed and every right title and interest with

respect thereto, heretofore held by said Chemische Fabrik von Heyden A.G., of Radebeul, Germany, all of which trademarks have been heretofore required by the Alien Property Custodian to be conveyed, transferred, assigned and delivered to him.

(e) All those certain registered trademarks, specified in Schedule "C" hereto annexed, and every right, title and interest with respect thereto, heretofore held by the said Chemische Fabrik von Heyden A.G. and *FF.* von Heyden Nachfolger, of Radebeul, Germany, all of which trademarks have been heretofore required by the Alien Property Custodian to be conveyed, transferred, assigned and delivered to him.

SCHEDULE "A".

Patents formerly in Chemische Fabrik von Heyden, A.G.

Number	Date	Title
712,190	October 28, 1902	Making phenyl glycin
714,042	November 18, 1902	Making indigo and intermediate products
737,836	September 1, 1903	Making indoxyl and idigo prpparations
740,702	October 6, 1903	Acetylsalicylate of Sodium
740,855	October 6, 1903	Mercurous chloride
742,429	October 27, 1903	Soluble Mercurous Iodide
745, 643	December 1, 1903	Chromate of Silver
749,634	January 12, 1904	Acetyl-para-cresotimic acid
779, 377	January 3, 1905	Bornyl esters and making camphor, etc.
808,407	December 26, 1905	Making guanyl dialkyl barbituric acid
809,563	January 9, 1906	Bismuth disalicylate and making same
846,649	March 12, 1907	Solution of mercurous oxycyanid and diany syl monophenetidyl-guanadin chlorohydrate
849,018	April 2, 1907	Making Camphor from isoborneol
906,229	December 8, 1908	Mirroring glass or like surfaces
919,762	April 27, 1909	Producing isobornyl esters
962,103	June 21, 1910	Making pure ortho- and para-guaiacol sulphuric salts
1051165	January 21, 1913	Manufacture of cellulose esters of fatty acids
1149712	August 10, 1915	Manufacture of salts of formaldehyde sulphurous acid with Al_2O_3
1148194	July 27, 1915	Manufacture of alkali amid
1260707	March 26, 1918	Manufacture of aromatic stibnic acid

SCHEDULE "B"

Trademarks formerly in Chemische Fabrik von Heyden A.G.

	Number	Date of Registration.
Sphygmogenin	28,773	August 18, 1896
Duotal	28,957	October 6, 1896
Crede	29,133	November 10,1896
Zuckerin	29,146	November 10,1896
F. H. in circle	29,942	May 4, 1897
Heyden-Sugar	31,407	March 8, 1898
Hyrgolum	32,451	January 31, 1899
Collargolum	32,452	January 31, 1899

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	Number	Date of Registration.
Calomelol	41,246	October 6, 1903
Salit	41,813	January 5, 1804
Calodal	42,410	April 19,1904
Ichthynat	44,053	January 24, 1905
Novargan	44,054	January 24, 1905
Duotal	54,968	August 7, 1906
Creosotal	54,969	August 7, 1906
Xeroform	66,547	December 10, 1907
Novargan	66,947	January 7, 1908
Salit	69,258	June 2, 1908
Acetylin	98,042	June 30, 1914.
Salacreol	40,597	June 16, 1903.

SCHEDULE "C"

Trademarks Formerly in Fr. von Heyden Nachfolger

	Number	Date of Registration
Crystallose	26,124	February 26,1895
Apolysin	26,332	April 2, 1895
Alcose	27,330	November 26, 1895
Orphol	27,462	December 17, 1895
Sucrol	21,846	October 4, 1892

At which sale the highest bid received for said property was the sum of $605,000 made by Monsanto Chemical Works.

It is therefore Ordered that the Alien Property Custodian be, and he is authorized, and shall have the right to reject all bids at said sale including the bid of the said Monsanto Chemical Works, and to resell such property in accordance with the provisions of the said "Trading with the Enemy Act", as amended, and the executive orders and proclamations issued pursuant thereto

The reason for the foregoing order is that the price bid for said property by the said Monsanto Chemical Works, to-wit: the sum of $605,000 is inadequate and not the fair value of the property offered for sale.

Done in the District of Columbia, this 14th day of March, in the year of our Lord One Thousand Nine Hundred and Nineteen.

Frank L. Polk

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